

Sunil Kumar Puniya vs Smt. Sharda Puniya (Sahu) on 11 December, 2024

Author: Ramesh Sinha

Bench: Ramesh Sinha

1/6

2024:

HIGH COURT OF CHHATTISGARH AT BILASPUR

CRR No. 1384 of 2024

Sunil Kumar Puniya S/o Jayveer Singh Puniya Aged About 30 Years
Village - Bairasar Small Police Station Rajgarh, Tahsil - Rajgarh
Churu, Rajasthan, Presently R/o. R.P.F. Police Station (Wrongly
As Aa. P.F. Police Station In Impugned Order), Titlagarh, District
Odisha.

versus

1 - Smt. Sharda Puniya (Sahu) W/o. Sunil Kumar Puniya Aged About
Years R/o Maulipara, Telibandha, Raipur, Chhattisgarh.

2 - Ku. Bhawya Puniya Through Her Mother Smt. Sharda Sahu, D/o.
Kumar Puniya, Aged About 5 Years, R/o Maulipara, Telibandha, Raipur,
Chhattisgarh.

(Cause title taken from Case Information System) For Applicant : Mr. Siddharth Rathod, Advocate
For Respondents : None Hon'ble Shri Ramesh Sinha, Chief Justice Order on Board 11/12/2024

1. The present criminal revision under Section 19(4) of the Family Courts Acts, 1984 read with
Sections 438, 442 of the Bhartiya Nyay Suraksha Digitally signed by VEDPRAKASH VEDPRAKASH
DEWANGAN DEWANGAN Sanhita, 2023 has been filed by the applicant/husband for setting aside
Date:

2024.12.20 19:25:14 +0530 the order dated 24.10.2024, passed by learned Principal
judge, Family Court, Raipur, in MCC No. 232/2024, whereby learned Family Court
has ordered for grant of maintenance amount of Rs. 15,000/- to the respondents

(Rs.10,000/- to respondent No.1/wife and Rs.5000/- to respondent No.2/daughter).

2. The brief facts of the case as projected in the revision is that the marriage was solemnized between the applicant and respondent No.1 on 05.02.2018 as per Hindu Rites and Rituals at Arya Samaj, Raipur. After 2-3 days of their marriage the applicant started misbehaving with the respondent No.1 and assaulted her and pushed out her from their residential house, due to which the respondent No.1 started residing with her parental house. The respondent No.1 lodged a report to the police station and on the basis of settlement the applicant took the respondent No.1 back to his matrimonial house and thereafter the applicant went to his place of work at Odisha. Thereafter her mother-in-law, sister-in-law and other relatives tortured the respondent No.1 physically and mentally. Despite of carrying pregnancy by the respondent No.1, the applicant has not taken care of her and pressurized her for abortion. On account of which, the respondent No.1 has filed an application under Section 125 of CrPC for grant of maintenance of Rs.25,000/- monthly. Along with the said application, she also filed an application for interim maintenance of Rs.15,000/-.

3. The applicant has filed reply to the said application stating that there is no relationship of husband and wife in the eyes of law between them as the respondent No.1 has already married earlier on 11.07.2016 with one Kirti Kumar son of Jayantilal and still no decree of divorce from the competent Court has been obtained by her. He stated that keeping the applicant in dark has solemnized marriage with him on 05.02.2018 violating Section 5(1) of the Hindu Marriage Act and thus the said marriage between them is null and void in the eyes of law. He further stated that the respondent No.1 pressurize him to hire a big house, as they were at the relevant point of time residing in a small rented house, thus a dispute between them arisen. When the mother of the applicant came to their house, the respondent No.1 refused to provide food and give respect. The applicant stated that the respondent No.1 has willfully and intentionally hidden the fact of earlier marriage in the application filed under Section 125 of CrPC for grant of maintenance. The learned Family Court vide order dated 12.09.2022 rejected the interim application of the respondent No.1 for the reason that the respondent No.1 has earlier married to one Kirti Kumar and without seeking decree of divorce fraudulently solemnized marriage with the applicant, which is contrary to Section 5(1) of Hindu Marriage Act, therefore the respondent No.1 is not a legally wife of the applicant and there is no relation with them as husband and wife and therefore, she is not entitled for interim maintenance from the applicant.

4. The respondent No.1 remained absent and never attended further proceeding before learned Family Court inspite of numerous opportunities, thus, on 19.06.2023 learned Family Court dismissed the application filed by the respondent No.1 under Section 125 CrPC for grant of maintenance. The said orders dated 12.09.2022 as well as 19.06.2023 have not been further challenged by the respondent No.1 before the higher judicial forum, thus the finding recorded by learned Family Court has attained its finality.

5. Thereafter, without disclosing the earlier proceeding and without disclosing about the first marriage with Kirti Kumar, the respondent No.1 along with his minor daughter has again preferred an application under Section 125 of the CrPC for grant of monthly maintenance of Rs. 30,000/-, which has been decided by the Court of Principal Judge, Family Court, Raipur on 22.10.2024

directing the applicant to pay Rs.15,000/- to the respondents (Rs. 10,000/- to respondent No.1/wife and Rs.5,000/- to respondent No.2/daughter) as monthly maintenance to the respondent No.1, which is under challenge in the present revision petition.

6. Learned counsel for the applicant would submit that the order passed by learned Family Court is illegal, arbitrary and contrary to law. He submits that learned Family Court has committed an error in allowing the application for interim maintenance. He further submits that the respondent No.1 is already married and without obtaining divorce and keeping the applicant in dark solemnized marriage with the applicant which is void in the eyes of law, therefore the respondents cannot be said to be his wife and daughter to pay maintenance. He also submits that learned Family Court has not appreciated the fact that earlier application of the respondent No.1 preferred under Section 125 of CrPC for interim maintenance was rejected by learned Family Court vide order dated 12.09.2022 and finally the proceeding was dismissed on 19.06.2023 and attained its finality, therefore the subsequent application filed under Section 125 CrPC is barred and not maintainable and same is non est in the eyes of law. He submits that the respondent No.1 had left the matrimonial house on her own will, therefore, she is not entitled for maintenance. Therefore, the order passed by learned Family Court dated 22.10.2024 is liable to be set aside.

7. I have heard learned counsel for the applicant and perused the material available on record.

8. Though the contention of the applicant are that the learned Family Court vide order dated 12.09.2022 had already rejected interim application and finally dismissed the application filed by the Respondent No.1 under Section 125 of CrPC for grant of maintenance vide order dated 19.06.2023 and the subsequent application is not maintainable, but considering the fact that the grant of maintenance is continuing cause of action and the Respondent No. 1 can file the application for maintenance when the cause of action arose for the same. While dealing with the ambit and scope of the provisions contained in Section 125 of the CrPC, it has to be born in mind that the dominant and primary object is to give social justice to the women, child and infirm parents etc. and to prevent destitution and vagrancy by compelling those who are unable to support themselves, but have a moral claim for support. The provisions of Section 125 CrPC provides a speedy remedy to the women, children and destitute parents, who are in distress. They should not be left in a helpless state of distress, destitution and starvation. Section 125 CrPC is a measure of social justice and is specially enacted to protect women and children by speedy remedy for the supply of food, clothing and shelter to the deserted wife.

9. The learned Family Court has observed in its order that the grounds raised by the applicant are the matter of evidence, which can be decided only after consideration of the case on merits after recording evidence of the parties. At this stage, any observation made by this Court in the entitlement or quantum of interim maintenance granted by the learned Family Court may prejudice the ultimate outcome of the application filed under Section 125 of the CrPC by the respondent/wife, as the main application filed by the respondent/wife is still pending, I am not inclined to interfere with the impugned order granting interim maintenance to the respondent/wife by the learned Family Court, Raipur. However, the Family Court is directed to expedite the proceedings under Section 125 of CrPC in MCC No. 232 of 2024 and conclude the same within 06 months from the date

of receipt of copy of this order.

10. With the aforesaid observation, the present revision petition is disposed of.

Sd/-

(Ramesh Sinha) Chief Justice ved